

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



March 7, 2019

The Honorable Daniel J. Buckley
Judge of the Superior Court
County of Los Angeles
111 North Hill Street, Department PJ
Los Angeles, CA 90012

Re: Enrique Cristobal
CDCR No: V78614
Case No: PA044991-01
Date of Sentence: May 2, 2005

Dear Honorable Daniel J. Buckley:

The purpose of this letter is to provide the court with the authority to resentence inmate Enrique Cristobal, pursuant to Penal Code (PC) Section 1170, subdivision (d)(1). Penal Code Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Cristobal was received to CDCR on May 17, 2005, and has only received one disciplinary Rules Violation Report since his incarceration. Inmate Cristobal was 20-years old at the time of the offense and had no prior juvenile or adult criminal history. Inmate Cristobal's actions leading to the commitment offenses may have been influenced by some causative factors and he has taken advantage of the Self-Help Programs available to him to help address these issues.

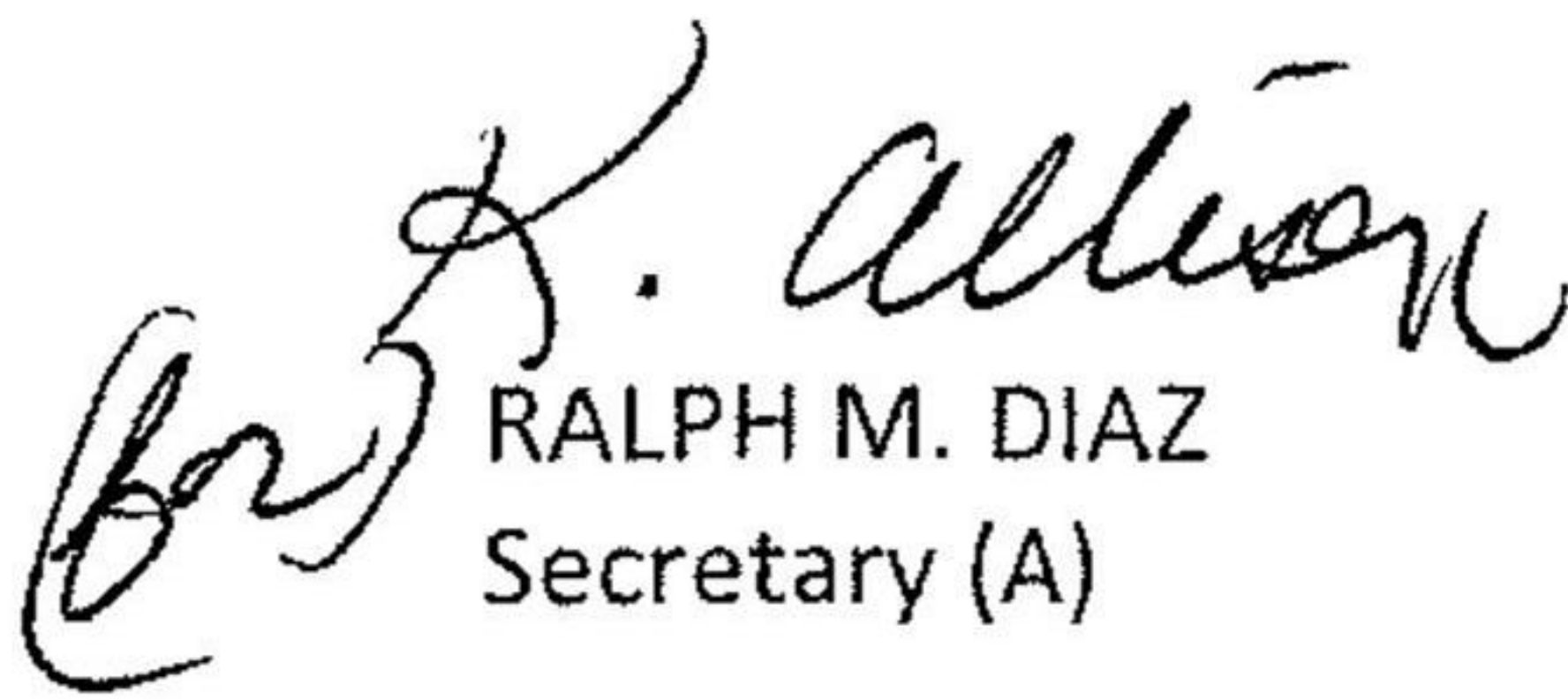
Inmate Cristobal appears to have a great deal of support from family and friends and there are no active or potential holds, warrants, or detainers. Inmate Cristobal had been identified as a suspect of Brown Pride, (Sureno) disruptive, Security Threat Group (STG)-II, however, Cristobal claims to have disassociated from gang activity, as evidenced by his request for and current Sensitive Needs Yard Housing status.

Inmate Cristobal is currently assigned as an Offender Mentor and is certified as a Drug and Alcohol Counselor. Prior Supervisors have noted that Cristobal is professional with staff and inmates, and is willing to accept all duties & responsibilities without complaint and takes pride in keeping the Re-entry, Hub Facility clean and neat.

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Having reviewed the enclosed documentation, it appears that inmate Cristobal's sentence warrants the attention of the court. Pursuant to PC Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment - Determinate
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office